

690 S.W.2d 374

Supreme Court of Kentucky.

THE LEXINGTON HERALD—
LEADER COMPANY, Movant,

v.

Flossie C. BEARD, [Bob Boone](#), Grace
M. Donnelly, Kathy D. Greer, Connie S.
Heird, Peter H. Laws, Karen M. Meekins,
Lori G. Miller, Vicky Rankin, Martha
Robertson, Kay Shannon, William A. Stallings,
and Danielle G. Twining, Respondents.

No. 84-SC-244-DG

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Dec. 20, 1984.

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Rehearing Denied June 13, 1985.

Synopsis

Appeal was taken from order of the Circuit Court, Fayette County, directing discovery of newspaper reporters' notes in libel action. The Court of Appeals dismissed. On petition for discretionary review, the Supreme Court, Leibson, J., held that: (1) discovery order was not directly appealable; (2) in the interests of justice, court would resolve the issue on the merits; and (3) trial court did not err in directing discovery despite claim of First Amendment privilege.

Affirmed.

Vance, J., dissented and filed an opinion in which Stephenson, J., joined.

Procedural Posture(s): On Appeal.

West Headnotes (7)

[1] Privileged Communications and Confidentiality **Journalists**[311H](#) Privileged Communications and Confidentiality[311HVII](#) Other Privileges[311Hk404](#) Journalists

(Formerly 307Ak33)

With respect to information in newspaper articles attributed directly to an identified person, statutory privilege against disclosure of the source of information was waived by publication. [KRS 421.100](#).

[4 Cases that cite this headnote](#)**[2] Appeal and Error** **Nature and Scope of Decision**[30](#) Appeal and Error[30III](#) Decisions Reviewable[30III\(D\)](#) Finality of Determination[30k75](#) Final Judgments or Decrees[30k78](#) Nature and Scope of Decision[30k78\(1\)](#) In general

Even though denominated as a final order by trial court, discovery order was not appealable.

[2 Cases that cite this headnote](#)**[3] Courts** **Appellate jurisdiction of Supreme Court in general**[106](#) Courts[106VI](#) Courts of Appellate Jurisdiction[106VI\(B\)](#) Courts of Particular States[106k223](#) Kentucky[106k223\(.5\)](#) Appellate jurisdiction of Supreme Court in general

(Formerly 106k223)

Where case had already been delayed a year and one-half by efforts to effect direct appeal of trial court's discovery order, case could not, in the interests of justice, stand a further delay while writ of prohibition worked its way through the appellate process, so that Supreme Court would consider the issues raised on the appeal, even though the order was not directly appealable.

[2 Cases that cite this headnote](#)**[4] Privileged Communications and Confidentiality** **Privileges not favored**
Privileged Communications and Confidentiality **Construction in general**[311H](#) Privileged Communications and Confidentiality[311HI](#) In General[311Hk7](#) Privileges not favored

(Formerly 307Ak33)

[311H](#) Privileged Communications and Confidentiality

[311HI](#) In General

[311Hk11](#) Construction in general

(Formerly 307Ak33)

Claims of privilege are carefully scrutinized and impediments to the discovery of truth are afforded validity in relatively few instances.

[5] **Pretrial Procedure** 🔑 **Relevancy and materiality**

[307A](#) Pretrial Procedure

[307AII](#) Depositions and Discovery

[307AII\(A\)](#) Discovery in General

[307Ak31](#) Relevancy and materiality

Parties may obtain discovery regarding any matter not privileged which is relevant to the subject matter involved in the pending action.

[6] **Pretrial Procedure** 🔑 **Relevancy and materiality**

[307A](#) Pretrial Procedure

[307AII](#) Depositions and Discovery

[307AII\(A\)](#) Discovery in General

[307Ak31](#) Relevancy and materiality

Where plaintiffs in libel action asserted liability on the grounds that newspaper negligently or with reckless disregard of truth published false and defamatory statements, discovery directed at information in the possession of the newspaper at the time of publication was relevant.

[7] **Constitutional Law** 🔑 **Discovery in defamation actions**

Privileged Communications and Confidentiality 🔑 **Journalists**

[92](#) Constitutional Law

[92XVIII](#) Freedom of Speech, Expression, and Press

[92XVIII\(X\)](#) Defamation

[92k2171](#) Discovery in defamation actions

(Formerly 92k90.1(8))

[311H](#) Privileged Communications and Confidentiality

[311HVII](#) Other Privileges

[311Hk404](#) Journalists

(Formerly 410k196.1, 92k90.1(8))

In libel action in which it was alleged that newspaper articles had been published negligently or with reckless disregard of the truth, trial court properly permitted discovery of information in the possession of newspaper at the time of publication, despite claim that the material was privileged on First Amendment grounds, with the newspaper being permitted to delete such portions of the reporters' notes as referred solely to matters other than the issues raised by the allegations of the complaint. [KRS 421.100](#); [U.S.C.A. Const.Amend. 1](#).

Attorneys and Law Firms

***374** Carl Timothy Cone, Elsa Goss Black, Stoll, Keenon & Park, Lexington, for movant.

Thomas H. Burnett, David M. Andrews, Lexington, for respondents.

Opinion

LEIBSON, Justice.

This case involves the scope of discovery in a libel case.

***375** Respondents are thirteen former employees of the University of Kentucky's Tobacco and Health Institute who sued the movant, a Lexington newspaper, claiming that the newspaper had published a series of articles about the Institute containing false and defamatory statements that the respondents were "fired," that they were "incompetent, crooked, or useless," and that the Institute was a "cesspool."

In June, 1981, shortly after suit was filed, the respondents served a subpoena duces tecum on three reporters involved in the publication of the allegedly defamatory articles directing them to produce at deposition "all documents of whatever nature relating to the matters in controversy herein, including but not limited to any memoranda of interviews, records of people interviewed, notes of whatever nature, memoranda of phone calls, reports of independent agencies, and any and all other materials acquired during the course of investigation or preparation of the newspaper stories referred to in the complaint"

The movant responded with a motion to quash, alleging the material was “nondiscoverable, at this time, by virtue of the First Amendment to the United States Constitution and [KRS 421.100](#).”

The matter was argued but was not ruled upon until February 16, 1983. In the interim the court had required the movants, as plaintiffs, to pursue other methods of discovery which included deposing the former director of the Institute at the time, to whom much of the information reported was attributed, and serving and answering extensive interrogatories.

[1] It was only after this discovery had failed to produce answers to basic questions as to what information was in the possession of the reporters at the time of publication that the trial court overruled the motion to quash while imposing certain “conditions.” These conditions included that the newspaper would be “permitted to furnish copies of the reporters' notes in lieu of the original thereof,” would be permitted “to delete from the copies ... such portions of the notes as refer solely to matters other than the issues raised by the allegations of the complaint,” and would be entitled to a further hearing whenever there was “any doubt as to whether material should or should not be deleted.”

Simply stated, the key question in this case is whether or not the articles published were based on information in the possession of the reporters at the time, and the respondents claimed that as a practical matter there was no reasonable or practical alternative to the subpoenas duces tecum for obtaining such discovery at the point where the trial court acted to overrule the newspaper's motion to quash, which was further qualified by its protective order. Further, the respondents concede as a fact for purposes of this case that the order as restricted to furnishing “copies of the reporters' notes in lieu of the original,” means that the *names* of the informants shall be deleted, thus recognizing the statutory privilege conferred by [KRS 421.100](#) protecting news media from disclosure of “the source of any information procured or obtained by [a reporter], and published in a newspaper....”¹

The trial court specified that its discovery order should be a final order subject to appeal. [CR 54.02](#). In March 1983 the newspaper perfected an appeal to the Court of Appeals, seeking to raise statutory and constitutional questions as to the discovery required by the trial court's order. In March 1984 by “Opinion and Order,” the Court of Appeals dismissed the newspaper's appeal on grounds that “[d]espite the recitation

of finality in the order ... the order is interlocutory in nature and does not finally adjudicate the rights of the parties below.”

The Court of Appeals cited  [Hook v. Hook, Ky., 563 S.W.2d 716, 717 \(1978\)](#):

“Where an order is by its very nature interlocutory, even the inclusion of the *376 recitals provided for in [CR 54.02](#) will not make it appealable.”

Because of the importance of underlying considerations in this case involving the scope of freedom of the press, we granted discretionary review. After considering both the procedural question as to the right to appeal a discovery issue of this nature, and the larger question of the competing interests involved, we affirm.

First, as to the procedural question. The test for determining the appealable character of an order of the trial court is whether “... the order grants or denies the ultimate relief sought in the action or requires further steps to be taken in order that parties' rights may be finally determined.” [Evans Elkhorn Coal Co. v. Ousley, Ky., 388 S.W.2d 130, 130–131 \(1965\)](#).

In [Claussner Hosiery Co. v. City of Paducah, 275 Ky. 149, 120 S.W.2d 1039 \(1938\)](#), we held that the trial court's order granting a subpoena duces tecum requiring the witness to produce the books and records of a corporation was “purely interlocutory” and therefore, not appealable. [120 S.W.2d at 1040](#). In [Crook v. Schumann, 292 Ky. 750, 167 S.W.2d 836 \(1942\)](#), a stockholder's action for mismanagement, we reaffirmed that such an order is “clearly interlocutory and not appealable.” [167 S.W.2d at 839](#).

[2] Movant takes the position that it is not necessary for all issues between the parties to be finally resolved before an order may be designated as final for purposes of appeal, relying primarily on  [Ratliff v. Fiscal Court of Caldwell County, Kentucky, Ky., 617 S.W.2d 36 \(1981\)](#). *Ratliff* was a condemnation case where the condemnee challenged the exercise of the power of eminent domain. We recognize the condemnee's right to appeal an interlocutory judgment granting the condemnor the immediate right of possession even though the issue of damages remained undecided.

The qualitative distinction between a discovery order and an order divesting a property owner of his property should be readily apparent. An order of immediate possession which irreversibly disposes of the use and possession of property

is final in character even though there is another issue in the case, compensation for the taking, which remains to be decided. A discovery order is totally dissimilar. As a general proposition to permit appeals from discovery orders would create intolerable delay and unmitigated chaos in the progress of the litigation.

[3] But, of course, it is not enough to dispose of the present case on the basis of the rule foreclosing appeal of a discovery order in ordinary circumstances. Discovery is challenged here on the basis that there is a competing public interest of constitutional magnitude, freedom of the press. Although movant has elected to proceed by appeal, the right to seek a writ of prohibition is not abandoned. Assuming the movant could establish that the lower court, although proceeding within its jurisdiction, was acting incorrectly in circumstances where there is no adequate remedy by appeal and great injustice or irreparable injury will result, such a writ would be available.  *Shumaker v. Paxton*, Ky., 613 S.W.2d 130 (1981); *Warecke v. Richardson*, Ky., 468 S.W.2d 795 (1971). This case has already been delayed a year and a half by the newspaper's effort to effect a direct appeal of the trial court's discovery order, followed by its petition for discretionary review. In the interest of justice and judicial economy, this case cannot stand a further, similar delay while a writ of prohibition works its way through the appellate process. It is incumbent upon us to go beyond the Court of Appeals' dismissal on procedural grounds and deal with the substantive issues.

There is a striking similarity between this case and  *Nazareth Lit. & Ben. Inst., d/b/a SS. Mary & Elizabeth Hospital v. Stephenson*, Ky., 503 S.W.2d 177 (1973). In the *SS. Mary & Elizabeth Hospital* case the issue was whether the hospital was required to respond to a discovery order directed to statements and reports of physician members of its staff rendered in internal *377 peer review procedures, where the issue was the hospital's alleged negligence in permitting an incompetent physician to practice in the hospital. The hospital argued an overriding public interest "that such reports ... must remain confidential because their revelation would impede the freedom of communication between physicians and hospital authorities concerning proper methods of treatment and the corrections of mistakes."  503 S.W.2d at 178. At the outset of the opinion this court addressed the question whether the hospital should have proceeded by appeal or writ of prohibition. We elected to decide the case on the merits, rather than to dispose of it on procedural grounds, primarily

because "the issue is one of positive public interest." The same consideration applies here.

Arguably, the confidentiality of the information in a reporter's notes may be of more, or less, public importance than the confidentiality of a hospital's peer view procedures. But there are a number of cardinal principles set out in the *SS. Mary & Elizabeth Hospital* case which are applicable here without regard to the relative public importance of the two interests. These are:

[4] 1) "Claims of privilege are carefully scrutinized, and impediments to the discovery of truth are afforded validity in relatively few instances in the common law."  503 S.W.2d at 179. Since there was "no applicable privilege expressed in either the general law of evidence existing in this state or in the statutes of this state expressing any protection of confidentiality in the situation presented," we decided no "public policy" exists that provides the power to create one. *Id.*

[5] [6] 2) "Under CR 26.02, as presently formulated, the expressed policy is that parties may obtain discovery regarding any matter, not privileged, which is relevant to the subject matter involved in the pending action..."  503 S.W.2d at 179. We stated, "[t]here can be no question in the case before us that the requested material is surely relevant to the subject matter involved in the personal injury suit which asserts liability against the hospital for the alleged incompetent action or omission of the physician who possessed staff privileges." *Id.* In like manner, in the present case there can be no question but that the requested material is "surely relevant." Respondents assert liability on the grounds that the newspaper negligently, or with reckless disregard of the truth, published false and defamatory statements about the respondents. The information in the possession of the newspaper at the time of publication is critical to these issues.

[7] The substance of movant's claim is that a privilege exists against disclosure of the information by virtue of freedom of the press as guaranteed by the First Amendment of the United States Constitution and Section 8 of the Kentucky Constitution, and by virtue of the privilege against disclosure of "the source of any information procured or obtained" by the newspaper as set out in KRS 421.100.

The cases interpreting these constitutional and statutory provisions are *Branzburg v. Pound*, Ky., 461 S.W.2d 345

(1971), *Branzburg v. Meigs*, Ky., 503 S.W.2d 748 (1971), and  *Branzburg v. Hayes*, 408 U.S. 665, 92 S.Ct. 2646, 33 L.Ed.2d 626 (1972), affirming *Branzburg v. Pound*.² Both the *Pound* and *Meigs* cases were written by Justice Vance of this Court. In both the *Pound* and *Meigs* cases a newspaper reporter, Branzburg, had refused to disclose information to grand juries (one in Jefferson County and one in Franklin County) regarding violation of statutes concerning use and sale of drugs. We held that “the language of KRS 421.100 granting immunity to a newsman from disclosing the *source of any information* procured or obtained by him, grants a privilege from disclosing the source of the information but does not grant a privilege against disclosing the information *378 itself.” *Pound, supra*, 461 S.W.2d at 347.

Justice Vance stated:

“At the outset we observe that at common law no privilege existed in favor of communications made to newsmen. [Cases cited]

KRS 421.100 which grants a newsman the privilege against disclosing his *source of information* is therefore a statute in derogation of the common law.... [A] privilege which did not exist at common law cannot be asserted under a statute unless it is clear that the statute was intended to grant the privilege.” 461 S.W.2d at 347.

The United States Supreme Court granted certiorari in the *Pound* case, and affirmed in a landmark case interpreting First Amendment freedom of the press, *Branzburg v. Hayes, supra*. In an opinion by Mr. Justice White, the United States Supreme Court analyzed the claim that the First Amendment provided a “qualified testimonial privilege to newsmen.” Mr. Justice White stated:

“Although the newsmen in these cases do not claim an absolute privilege against official interrogation in all circumstances, they assert that the reporter should not be forced either to appear or to testify before a grand jury or at trial until and unless sufficient grounds are shown for believing that the reporter possesses information relevant to a crime the grand jury is investigating, that the information the reporter has is unavailable from other sources, and that the need for the information is sufficiently compelling to override the claimed invasion of First Amendment interests occasioned by the disclosure.”

 408 U.S. at 680, 92 S.Ct. at 2656.

The opinion continues:

“It is clear that the First Amendment does not invalidate every incidental burdening of the press that may result from the enforcement of civil or criminal statutes of general applicability.... [O]therwise valid laws serving substantial public interests may be enforced against the press as against others, despite the possible burden that may be imposed.... ‘[t]he publisher of a newspaper has no special immunity from the application of general laws. He has no special privilege to invade the rights and liberties of others.’  408 U.S. at 682–683 [ 92 S.Ct. at 2657–2658]. [Cases cited].

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In 1958, a news gatherer asserted for the first time that the First Amendment exempted confidential information from public disclosure pursuant to a subpoena issued in a civil suit,  *Garland v. Torre*, 259 F.2d 545 (CA2), cert. denied,  358 US 910, 79 S.Ct. 237, 3 L.Ed.2d 231 (1958), but the claim was denied, and this argument has been almost uniformly rejected since then.... These courts have applied the presumption against the existence of an asserted testimonial privilege,  *United States v. Bryan*, 339 U.S. 323, 331, 70 S.Ct. 724 [730],  94 L.Ed. 884, 890 (1950), and have concluded that the First Amendment interest asserted by the newsman was outweighed by the general obligation of a citizen to appear before a grand jury or at trial, pursuant to a subpoena, and give what information he possesses.  408 U.S. at 685–686 [ 92 S.Ct. at 2658–2659].

The court concludes:

“Until now the only testimonial privilege for unofficial witnesses that is rooted in the Federal Constitution is the Fifth Amendment privilege against compelled self-incrimination. We are asked to create another by interpreting the First Amendment to grant newsmen a testimonial privilege that other citizens do not enjoy. This we decline to do.”  408 U.S. at 689–690 [ 92 S.Ct. at 2661].

In the trial court movant cited a case out of the Tenth Circuit,  *Silkwood v. Kerr-McGee Corp.*, 563 F.2d 433 (CCA 10, 1977), as establishing certain “criteria” that must be

hurdled before compelling a newsman to disclose information acquired in gathering news in a judicial proceeding. In *Branzburg v. Hayes*, *supra*, the United States *379 Supreme Court established no criteria, except, perhaps, that the information sought must be by “relevant and material questions asked during a good-faith ... investigation,” 408 U.S. at 708, 92 S.Ct. at 2670. The court specifically stated that the government was not required to demonstrate some “compelling need” for the newsman's testimony.

In *Garland v. Torre*, *supra*, cited by the United States Supreme Court in the previous quote, Judy Garland sued Columbia Broadcasting System for defamation and sought compulsory disclosure of a journalist's confidential sources of information, a case strikingly similar to the present one. The court refused to recognize a testimonial privilege and required the news media to make disclosure. Nevertheless, the court did discuss certain legitimate considerations that the First Amendment raises in such cases. The opinion states:

“[W]e are not dealing here with the use of the judicial process to force a wholesale disclosure of a newspaper's confidential sources of news, nor with a case where the identity of the news source is of doubtful relevance or materiality. [Cf. cases cited]. The question asked of the appellant went to the heart of the plaintiff's claim. We hold that the Constitution conferred no right to refuse an answer.” 259 F.2d at 549–550.

The court stated:

“In denying the motion [the trial judge] found that the deposition was ‘being taken by plaintiff in good faith and not in such manner as to unreasonably annoy, embarrass or oppress the witness,’ and further that it was ‘a necessary step in the due and proper preparation for trial.’

... While it is possible that the plaintiff could have learned the identity of the informant by further discovery proceedings directed to CBS, her reasonable efforts in that direction had met with singular lack of success.... [w]e cannot say that the claim is patently frivolous. The information sought was of obvious materiality and relevance. That being so, the eventual outcome of the litigation is not for the appellant nor for this court now to prophesy.” 259 F.2d at 551.

It is significant that in the present case the trial court proceeded with due deference to the movant's First

Amendment rights. It required various interrogatories and the deposition of the Institute's director before proceeding further. The information thus provided was far short of the respondents' legitimate discovery needs, and, as a practical matter, the reasonable place to look for the answers as to what information was in possession of the newspaper at the time the articles were written was in the material from which these articles were written. The trial court has fashioned a protective order suitable to the circumstances. We take the same position as taken by Mr. Justice White in *Branzburg v. Hayes*, *supra*, that we, as an appellate court, should not interpose rules, standards or criteria as preconditions to requiring disclosure of information in a libel case. As Mr. Justice White stated:

“We are unwilling to embark the judiciary on a long and difficult journey to such an uncertain destination. The administration of a constitutional newsman's privilege would present practical and conceptual difficulties of a high order....

In each instance where a reporter is subpoenaed to testify, the courts would also be embroiled in preliminary factual and legal determinations with respect to whether the proper predicate had been laid for the reporter's appearance....”

408 U.S. at 703–705, 92 S.Ct. at 2668–2669.

In the end, each case must be decided by the trial court weighing the competing interests of a litigant's right to disclosure with due regard for the importance of freedom of the press. While a fishing expedition will not be tolerated, and the limited statutory privilege in KRS 421.100 must be observed, a litigant's legitimate interest in discovery of information relevant and material to the issues must be respected.

The trial court acted properly in the circumstances. We affirm both the Opinion *380 and Order of the Court of Appeals dismissing the appeal on procedural grounds, and the substantive validity of the trial court's discovery order as proper in the circumstances and properly circumscribed.

AKER, GANT, LEIBSON and WINTERSHEIMER, JJ., concur.

VANCE, J., files a dissenting opinion in which STEPHENSON, J. joins.

STEPHENS, C.J., not sitting.

VANCE, Justice, dissenting.

I dissent from all of the opinion which goes beyond holding that the Court of Appeals properly dismissed the appeal because the order appealed from was not a final order. The discipline which I believe we should impose upon ourselves would not permit us to affirm the dismissal of an appeal by the Court of Appeals, and then proceed to review the merits of the issues raised in the appeal which had been dismissed.

Since the majority has affirmed the dismissal of the appeal by the Court of Appeals, it is my view that all of the discussion of the merits of the First Amendment issues raised are not necessary to the holding and are, therefore, purely dictum.

We have no information as to any specific question which may be propounded to a reporter or any specific document or type of information which the reporter may want to exempt from discovery, nor any information as to the relevance of specific questions or information. The majority approves the

order of the trial court. The newspaper or the reporters may yet request deletion of some of the material requested, and the trial court will hold a hearing and rule upon the specific request and enter an order thereon. Essentially, this leaves the case exactly where it was before the appeal was taken and dismissed, except that we have, by dicta, issued an advisory opinion to the trial judge that when and if the newspaper or its reporters request a deletion or exemption of any of the specific items of material sought to be discovered, he should give no consideration to any claim of First Amendment protection. In my view, an advisory opinion of this nature should not be given by this court until the matter is squarely before us by way of a valid appeal, not one which has been properly dismissed.

STEPHENSON, J., joins in this dissent.

All Citations

690 S.W.2d 374, 11 Media L. Rep. 1376

Footnotes

- 1 As to information in the articles attributed directly to the former director of the Institute, the statutory privilege against disclosure of the source of the information has been *waived* by publication. See Annots.,  7 A.L.R.3d 591, 598–600; 99 A.L.R.3d 37, 106–114.
- 2 The Hon. John P. Hayes succeeded the Hon. J. Miles Pound as judge in the trial court, and was substituted as named defendant in the United States Supreme Court.

Citing References (32)

Treatment	Title	Date	Type	Depth	Headnote(s)
Discussed by	1. WKYT-TV v. Commonwealth  2024 WL 5099051, *2+ , Ky.App. WKYT-TV ("WKYT") appeals from an interlocutory order of the Powell Circuit Court granting the Commonwealth's motion to compel the production of a complete, unedited interview with...	Dec. 13, 2024	Case		1 S.W.2d
Discussed by	2. Patriot Tobacco Co. v. Com. ex rel. Stumbo  2005 WL 678554, *3+ , Ky.App. Patriot Tobacco Company (hereinafter "Patriot") appeals two orders of the Franklin Circuit Court. The orders in question amended a previous order entered by the court which ordered...	Mar. 25, 2005	Case		3 S.W.2d
Cited by	3. Doe v. Coleman 497 S.W.3d 740, 746 , Ky. TORTS — Defamation. Public official failed to present real evidence of falsity, as required to establish prima facie case necessary to overcome speakers' interest in maintaining...	Sep. 22, 2016	Case		—
Cited by	4. Mullins v. Mullins 2014 WL 3548279, *2 , Ky.App. Appellant, Glen A. Mullins ("Husband"), appeals an order by the Greenup Circuit Court ordering him to produce certain information to the Appellee, Sandra Mullins Scaggs ("Wife") so...	July 18, 2014	Case		2 S.W.2d
Cited by	5. Doe v. Coleman 436 S.W.3d 207, 209 , Ky.App. TORTS - Defamation. Public figure who claimed anonymous users posted defamatory statements on website failed to establish entitlement to disclosure of identities of anonymous...	June 20, 2014	Case		—
Cited by	6. Sizemore v. Sizemore  2014 WL 897020, *1+ , Ky.App. Appellant, Jennifer Sizemore, appeals from an order of the Laurel Family Court granting Appellee's, Darin Sizemore's, motion for a protective order and limiting her discovery...	Mar. 07, 2014	Case		2 S.W.2d
Cited by	7. Williams v. Vulcan-Hart Corp. 136 F.R.D. 457, 460 , W.D.Ky. Employees filed diversity action against employer and its parent corporation alleging racial and employment discrimination under Kentucky Civil Rights Act. On employee's motion...	Apr. 22, 1991	Case		3 S.W.2d
Cited by	 8. In re Paul 513 S.E.2d 219, 224 , Ga. CRIMINAL JUSTICE - Privileges. Reporter did not waive qualified privilege against disclosure of unpublished information.	Mar. 08, 1999	Case		1 S.W.2d

Treatment	Title	Date	Type	Depth	Headnote(s)
Cited by	 9. Las Vegas Sun, Inc. v. Eighth Judicial Dist. Court In and For County of Clark 761 P.2d 849, 853 , Nev. Subject of newspaper editorial brought libel action against newspaper and reporter. The Eighth Judicial District Court, Clark County, Joseph S. Pavlikowski, J., entered order...	Sep. 29, 1988	Case		1 S.W.2d
Cited by	10. 2023 WL 2416156 (Ky.A.G.), *4 Ky. Op. Atty. Gen. 23-ORD-024, 23-ORD-024 On October 20, 2022, Perry Boxx submitted to the University a request to inspect two categories of records. First, he sought "[c]orrespondence, including but not limited to emails...	Feb. 02, 2023	Administrative Decision		—
Mentioned by	11. Maddox v. Williams 1995 WL 569425, *1 , Ky.Cir.Ct. Before this Court are a multitude of motions and responses pertaining to discovery, contempt, subpoenas for newspaper reporters' documents, and modification of the January 7, 1994...	Apr. 03, 1995	Case		1 S.W.2d
—	12. KY KR CIRCUIT 300, KeyRules Kentucky Circuit Court, KY CIRCUIT Interrogatories KeyRules Kentucky Circuit Court I. Applicable Rules 1. State rules a. Title and scope of rules. KY ST RCP Rule 1. b. Service and filing of pleadings and other papers. KY ST RCP Rule 5.01; KY ST RCP Rule 5.02; KY...	2025	Key Rules	—	—
—	13. KY KR CIRCUIT 302, KeyRules Kentucky Circuit Court, KY CIRCUIT Request for Production of Documents KeyRules Kentucky Circuit Court I. Applicable Rules 1. State rules a. Title and scope of rules. KY ST RCP Rule 1. b. Service and filing of pleadings and other papers. KY ST RCP Rule 5.01; KY ST RCP Rule 5.02; KY...	2026	Key Rules	—	—
—	14. KY KR CIRCUIT 304, KeyRules Kentucky Circuit Court, KY CIRCUIT Request for Admissions KeyRules Kentucky Circuit Court I. Applicable Rules 1. State rules a. Title and scope of rules. KY ST RCP Rule 1. b. Service and filing of pleadings and other papers. KY ST RCP Rule 5.01; KY ST RCP Rule 5.02; KY...	2026	Key Rules	—	—
—	15. KY KR CIRCUIT 306, KeyRules Kentucky Circuit Court, KY CIRCUIT Notice of Deposition KeyRules Kentucky Circuit Court I. Applicable Rules 1. State rules a. Title and scope of rules. KY ST RCP Rule 1. b. Service and filing of pleadings and other papers. KY ST RCP Rule 5.01; KY ST RCP Rule 5.02; KY...	2026	Key Rules	—	—

Treatment	Title	Date	Type	Depth	Headnote(s)
—	16. Appealability of order pertaining to pretrial examination, discovery, interrogatories, production of books and papers, or the like 37 A.L.R.2d 586 The purpose of the present annotation is to collect the cases considering the appealability of orders pertaining to pretrial examination, discovery, interrogatories, production of...	1954	ALR	—	5 6 7 S.W.2d
—	17. Kentucky Practice, Appellate Practice s 4:6, § 4:6. Review of pre-trial motions Kentucky Practice, Appellate Practice Kentucky decisions have established clear standards of review for various common pre-trial motions. For a motion to dismiss for failure to state a claim, an appellate court will...	2025	Other Secondary Source	—	—
—	18. Kentucky Practice, Methods of Practice s 32:5, § 32:5. Depositions (Rule 30-32) As to depositions for use as evidence at trial, such depositions are the nearest substitute for the question and answer testimony of a flesh and blood witness on the stand. Rule...	2025	Other Secondary Source	—	5 S.W.2d
—	19. Kentucky Practice, Rules of Civil Procedure Ann. R 26.01, Rule 26.01. Discovery methods (Amended by Order 2004-5, eff. 1-1-05; adopted eff. 10-1-71) Former CR 26.01 transferred to CR 30.01, eff. 10-1-71. Source: Former Fed. R. Civ. P. 26(a) (before 1993 and 2000...	2025	Other Secondary Source	—	—
—	20. Kentucky Practice, Rules of Civil Procedure Ann. R 26.02, Rule 26.02. Scope of discovery (Amended by Order 2004-5, eff. 1-1-05; prior amendments eff. 1-1-78, 10-1-71; adopted eff. 7-1-53) Source: Former Fed. R. Civ. P. 26(b) (prior to 1993 and 2000 amendments to the...	2025	Other Secondary Source	—	—
—	21. Kentucky Practice, Rules of Civil Procedure Ann. R 54.02, Rule 54.02. Judgment upon multiple claims or involving multiple parties (Amended by Order 91-2, eff. 11-15-91; prior amendments eff. 7-1-69, 4-1-63, 6-1-60; adopted eff. 7-1-53) Source: Fed. R. Civ. P. 54(b). Rule 20.01, Separate judgments when several...	2025	Other Secondary Source	—	3 S.W.2d
—	22. Kentucky Practice Series, Kentucky Motions in Limine s 8:84, Opposing authorities—Civil consequences of silence Barrow v. Lexington-Fayette Urban County Civil Service Com'n, 222 S.W.3d 237, 240 (Ky. Ct. App. 2006) (public employees may constitutionally be discharged for refusing to answer...	2025	Other Secondary Source	—	7 S.W.2d
—	23. Testimonial Privileges s 8:10, § 8:10. Other unpublished information and work product Testimonial Privileges In the early years of the privilege, courts generally discussed journalists' protection under the First Amendment in terms of a privilege not to reveal confidential sources and...	2025	Other Secondary Source	—	1 S.W.2d

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—	24. Testimonial Privileges s 8:19, § 8:19. Civil proceedings: the journalist as a party Testimonial Privileges When journalists (or their employers) are parties to a civil action, they frequently face interrogatories and discovery requests seeking a wide variety of information and...	2025	Other Secondary Source	—	1 S.W.2d
—	25. Testimonial Privileges s 8:21, § 8:21. In camera review and related procedures Testimonial Privileges In applying the journalist's privilege, courts sometimes resort to in camera review to aid them in assessing the moving party's need for the requested information. Inspection of...	2025	Other Secondary Source	—	1 S.W.2d
—	26. THE DEMISE OF THE FIRST AMENDMENT-BASED REPORTER'S PRIVILEGE: WHY THIS CURRENT TREND SHOULD NOT SURPRISE THE MEDIA 37 Conn. L. Rev. 1235 , 1269+ The media is a daily part of all Americans' lives. Whether the public encounters the media over a cup of coffee in the morning or when they turn off their televisions before going...	2005	Law Review	—	7 S.W.2d
—	27. BRANZBURG REVISITED: CONFIDENTIAL SOURCES AND FIRST AMENDMENT VALUES 57 Geo. Wash. L. Rev. 13 , 50+ Sixteen years ago, the United States Supreme Court decided Branzburg v. Hayes, the full Court's first and only discussion of the scope of the constitutional protections afforded a...	1988	Law Review	—	7 S.W.2d
—	28. THE CASE FOR A FEDERAL JOURNALIST'S TESTIMONIAL SHIELD STATUTE 18 Hastings Const. L.Q. 779 , 818 A popular Government, without popular information, or the means of acquiring it, is but a Prologue to a Farce or a Tragedy; or, perhaps both. James Madison Introduction I. The...	1991	Law Review	—	7 S.W.2d
—	29. SHIELD LAWS ON TRIAL: STATE COURT INTERPRETATION OF THE JOURNALIST'S STATUTORY PRIVILEGE 23 J. Legis. 215 , 229 Twenty-five years ago, the legal and journalistic professions were grappling with the issue of a privilege to protect newsgatherers from the threat of subpoenas. Historically,...	1997	Law Review	—	7 S.W.2d
—	30. EVIDENTIARY PRIVILEGE FOR JOURNALISTS' SOURCES: THEORY AND STATUTORY PROTECTION 51 Mo. L. Rev. 1 , 62 I. INTRODUCTION. 2 II. THEORETICAL FOUNDATION. 2 III. UTILITARIAN THEORY. 3 IV. CONSTITUTIONAL FOUNDATION. 10 V. HISTORY OF JOURNALIST'S PRIVILEGE. 17 VI. STATUTORY PRIVILEGE. 25...	1986	Law Review	—	1 S.W.2d

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—	31. THROWING THE BOOK AT REVELATIONS: FIRST AMENDMENT IMPLICATIONS OF ENFORCING REPORTERS' PROMISES 18 N.Y.U. Rev. L. & Soc. Change 161 , 212 Introduction I. The Conflict Between Reputational Interests and the First Amendment A. Common Law Libel B. New York Times v. Sullivan and Its Progeny C. The Dominance of the First...	1991	Law Review	—	7 S.W.2d
—	32. KENTUCKY DEFAMATION AND PRIVACY LAW - THE LAST DECADE 23 N. Ky. L. Rev. 231 , 262 In the last decade a number of important United States Supreme Court decisions have been issued dealing with the law of defamation and privacy. During this same period, Kentucky...	1996	Law Review	—	1 7 S.W.2d

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Examined	 1. Branzburg v. Hayes 92 S.Ct. 2646, U.S.Ky., 1972 Certiorari was granted to review judgment of the United States Court of Appeals for the Ninth Circuit, 434 F.2d 1081, upholding refusal of newsman to appear and testify before...	Case			377+
Mentioned	2. Branzburg v. Meigs 503 S.W.2d 748, Ky., 1971 Original action for order prohibiting circuit court judge from proceeding against newspaper reporter by contempt proceedings for failing to appear before grand jury as directed and...	Case			377+
Discussed	3. Branzburg v. Pound 461 S.W.2d 345, Ky., 1970 Prohibition proceeding by newspaperman who had been held in contempt for his refusal to disclose to grand jury the identity of man he had observed producing hashish. The Court or...	Case			377+
Cited	4. Claussner Hosiery Co. v. City of Paducah 120 S.W.2d 1039, Ky., 1938 Appeal from Circuit Court, McCracken County. Action by the City of Paducah against the Claussner Hosiery Company. From an order granting a subpoena duces tecum and making absolute...	Case			376+
Cited	5. Crook v. Schumann 167 S.W.2d 836, Ky., 1942 Appeal from Circuit Court, Caldwell County; H. F. S. Bailey, Judge. Suit by W. A. Schumann and others against S. L. Crook and others for relief for mismanagement of corporation by...	Case			376+
Cited	6. Evans Elkhorn Coal Co. v. Ousley 388 S.W.2d 130, Ky., 1965 From an order of the Circuit Court, Floyd County, Edward P. Hill, J., allowing redocketing of the case for further proceedings, an appeal was taken. The Court of Appeals, Charles...	Case			376
Discussed	 7. Garland v. Torre 259 F.2d 545, 2nd Cir.(N.Y.), 1958 Actress brought action against broadcasting system for breach of contract and for allegedly false and defamatory statements allegedly made concerning her by a 'network executive'...	Case			378+

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Cited	 8. Hook v. Hook 563 S.W.2d 716, Ky., 1978 The Jefferson Circuit Court, Jack E. Mudd, J., concluded that it had jurisdiction to determine issue of modification in a child custody case, and mother appealed. The Court of...	Case			375
Discussed	 9. Nazareth Literary and Benev. Inst. v. Stephenson 503 S.W.2d 177, Ky., 1973 Hospital and three physicians, who were defendants in a pending civil action charging the physicians with malpractice and the hospital with negligence, sought an order prohibiting...	Case			376+
Mentioned	10. Privilege of newsgatherer against disclosure of confidential sources or information Privilege of newsgatherer against disclosure of confidential sources or information 1980 WL 131107, 1980 This annotation collects and analyzes the cases which have discussed questions relating to the privilege of a newsgatherer not to disclose in a legal proceeding, trial, or...	Secondary Source			375
Cited	 11. Privilege of newspaper or magazine and persons connected therewith not to disclose communications to or information acquired by such a person Privilege of newspaper or magazine and persons connected therewith not to disclose communications to or information acquired by such a person 1966 WL 15513, 1966 This article has been superseded by the following article(s): Superseded by 99 A.L.R.3d 37	Secondary Source			375
Cited	 12. Ratliff v. Fiscal Court of Caldwell County, Kentucky 617 S.W.2d 36, Ky., 1981 Condemnor brought action to condemn certain land for expansion of electrical transmission system. The Caldwell Circuit Court, W. C. Tipton, J., entered an interlocutory judgment...	Case			376+
Cited	 13. Shumaker v. Paxton 613 S.W.2d 130, Ky., 1981 Father filed petition in county of residence of all parties asking court to modify custody decree to allow father and mother joint custody. Mother moved to dismiss father's...	Case			376

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Cited	 14. Silkwood v. Kerr-McGee Corp. 563 F.2d 433, 10th Cir.(Okla.), 1977 Appeal was taken from an order of the United States District Court for the Western District of Oklahoma, Luther B. Eubanks, J., denying an investigative reporter's motion, in...	Case			378
Cited	 15. U.S. v. Bryan 70 S.Ct. 724, U.S.Dist.Col., 1950 Helen R. Bryan, executive secretary of the Joint Anti-Fascist Refugee Committee, was indicted for violation of 2 U.S.C.A. s 192, in that she failed to produce records called for in...	Case			378
Mentioned	16. Warecke v. Richardson 468 S.W.2d 795, Ky., 1971 Original action for an order prohibiting a circuit court judge from proceeding further in an action pending in his court. The Court of Appeals, Vance, C., held that prohibition...	Case			376